

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

202200567250CUPA: Ly Ti Tong vs. American Auto Auction Group LLC

08/06/2026 in Department 20

**Motion FOR PREJUDGMENT INTEREST AND POSTOFFER EXPERT SERVICES AS
ALLOWED PURSUANT TO CIVIL PROCEDURE CODE SECTION 998 AND CIVIL
CODE SECTION 3291**

Motion: Plaintiff Ly Ti Tong’s (“Plaintiff”) Motion for Prejudgment Interest

Tentative: Plaintiff’s Motion for Prejudgment Interest is GRANTED. Defendant American Auto Auction Group, LLC has failed to carry its burden of showing that the offer was not made in good faith. (See generally *Licudine v. Cedars-Sinai Medical Center* (2019) 30 Cal.App.5th 918, 926.)

Plaintiff’s offer to compromise of \$5,995,000 was served one year after Defendant filed its answer. Plaintiff has established that at the time her offer was made, it was undoubtedly within the “range of reasonably possible results” at trial considering all of the information she knew; and that she knew that Defendant had sufficient information to assess whether the offer was a reasonable one. (*Id.* at pp. 924-925.) Well prior to the service of the offer, Defendant was provided with medical records, accident records, discovery responses, and Plaintiff’s deposition. Exhibit E to the declaration of defense counsel Julio Cortes indicates that as of November 16, 2023, Plaintiff’s counsel had represented that Plaintiff was unable to return to work; that Kaiser would not let her return to work due to her alleged condition because she could not perform surgeries given her medical impairments; and that it appeared Kaiser would medically retire her at the end of the November 2023. Defendant had sufficient information to intelligently evaluate the offer. Nevertheless, in November 2023, Plaintiff’s counsel agreed to keep the offer open “through trial” so that Defendant could “continue to investigate Plaintiff’s economic damages claims.” (Cortes Decl.¶ 6; Exh. “E”.) The offer was not accepted.

The jury returned a verdict for Plaintiff in the amount of \$8,226,649.80. Judgment was entered on 5/11/26. Pursuant to Civil Code section 3291, “the judgment shall bear interest at the legal rate of 10 percent per annum calculated from the date of Plaintiff’s first offer pursuant to section 998 of the Code of Civil Procedure which is exceeded by the judgment, and interest shall accrue until satisfaction of the judgment.”

Plaintiff is awarded interest on \$8,226,649.80 from 10/13/23 until the judgment is satisfied. Interest on \$8,226,649.80 accrues at the rate of \$2,253.88 per day. Total interest for the period from 10/13/23 through 8/6/26 is \$2,316,988.64. Plaintiff’s counsel is directed to prepare an amended judgment in accordance with this tentative ruling.

Plaintiff shall give notice.